

FOUNDING BRIEF

We the Users

Reclaiming the internet — its power and its rewards — into one of, by, and for the people who use it

Working draft v0.13 · June 22, 2026

A living document — meant to be marked up, argued with, and rewritten

1. The case

Two hundred and fifty years ago, a people living under an unequal arrangement of power decided they no longer had to accept it. They named the injustice plainly, declared their independence, and then did the slow, contested work of building a fairer system of governance in its place. We face a version of that same moment — this time in the digital world.

The internet today runs on an inequality of power and financial arrangement. A handful of companies own the infrastructure, set the rules, and capture the value — while the people who actually generate that value receive almost none of it. Every photo, message, purchase, and search you create is a **digital shadow** of your real life; it would not exist if you did not. Today those shadows are harvested and monetized by others, and the enormous value built on top of them — above all the artificial intelligence now trained on the digital shadows of humanity — flows to the few who hold the data.¹ Not because they are smarter than the rest of us, but because they are holding what is ours. It is a quiet reduction with a plain name: **We the Users** have been turned, link by link, into *we the used*.

It does not have to be this way. Just as a society can recognize an unjust concentration of power and choose, together, to build something better, so can the people of the internet. We can declare our independence from an extractive internet and build, in its place, a network owned by its users — one where the rewards of all that activity flow back to the people who create them, and where no founder, engineer, or investor is permanently exalted above anyone else.

(What to name this new internet — a candidate name, with the case for and against it — is taken up in Appendix F.9; outwardly the project wears a universal title.)

2. What we are doing now — a call to draft

We are not, today, declaring independence. We are doing what came *before* the Declaration: gathering the people who believe there is a better way, and beginning — together, in the open — the work of writing the documents a free internet would need. Two hundred and fifty years ago that work took years: the committees of correspondence, the pamphlets, the slow building of a common conviction, all *before* July 1776. Where we stand now is that earlier moment. This brief, the essays, and the website are the call; the Declaration and the constitution are what we are calling people to help write.

So there are three ways to take part, and they are distinct acts:

- **Join the call.** Affirm that you believe the internet should belong to the people who use it, and add your voice. This is not signing a finished Declaration — there isn't one yet — it is declaring that you believe there is a better way and want to help build it.
- **Help draft.** Contribute to the work itself: the essays, the website, or the language of the Declaration and the constitution as they take shape in the open.
- **Ratify, later.** When the documents are written and ready, communities adopt them — the Declaration and the constitution together — each on the date it chooses. That is the true signing, and it comes only when there is something finished and tested to sign.

We will not pretend the words are the finished thing. The hard questions, and there are many, are not hidden in this document; they are its agenda — and answering them is the drafting we are inviting people into. We intend to do that work entirely in the open. The existing Declaration in this repository is a **provisional draft**: one proposal to argue with and improve, not a settled text, and not yet signed by anyone.

3. What this document is

This is the founding brief — the map. It makes the case, sketches the design, and lays out honestly the questions we have not yet answered. The short read is Part I, here. The depth — the full vision, the architecture, the historical model we are learning from, every hard question worked through, and the open decisions — lives in the appendices. A founding document that cannot survive its own strongest critics in private will not survive them in public, so nothing here is smoothed over.

4. The essays — the public case

The argument this brief compresses is made at length, and for a general reader, in a short series of essays — the project's *Common Sense*, written as five pieces rather than one so each can stand on its own:

- ***We Never Agreed*** — the broad case: that the present internet was built, not given, and can be built differently.
- ***The Shape of Your Digital Shadow*** — what your data is, region by region, and what rights a free person should hold over each.
- ***Ambition Against Ambition*** — how a user-owned internet divides power, money, and authority so that no part can rule the rest.
- ***The Longer Race*** — the economics: why a collaborative internet produces at least as much value as a competitive one, and shares it far more evenly.
- ***The Ledger and the Spoils*** — why crypto decentralized the record but not the rewards, and how AI and crypto together can finally decentralize the rewards too.

Together the essays carry the persuasion; this brief carries the design and the open questions behind them. The Declaration (as a **provisional draft**), the full essay series, and a digestible version of this vision live on a public **website** — the place where people read, **join the call**, lend their help, and name the community they would form on a user-owned internet. The project's working materials — this brief, the essays, and everything that follows — are hosted openly on **GitHub**, where anyone can read the work, raise issues, and contribute to it. The Declaration and the constitution that follow are meant to be written the same way: in public, where the work can be seen and joined.

5. The vision and the design, in brief

The ambition is larger than data or AI: it is to **decentralize the whole app economy** — social networks, commerce, and the rest of the apps that run the internet — and let the network rebuild them to suit its own purposes, drawing the rewards of that activity back to itself. AI is one piece of this, not the whole of it.

And the ambition is longer in time than the quarter-by-quarter companies it would replace: we are building for the next thousand years, not the next earnings call, and a thousand-year thing is won by working together with everyone willing to build it, not by outrunning one another in sprints.

The design rests on a few moves, each detailed in the appendices:

- **Digital shadows, held by their owners.** Each person keeps a data store that is theirs; sharing it, including to train the network's AI, is their choice (Appendix A, Appendix C).
- **Three tiers, with powers divided like a federation.** Individuals, Communities, and a thin Commonwealth, with the contested operational questions pushed down to Communities to work out within shared principles (Appendix C).
- **Rewards flow back, and power cannot pool.** Returns to early backers are capped, and the system is built so that no founder, engineer, or investor is permanently enriched or empowered above the rest (Appendix B, Appendix D). In a sense this is where **AI and crypto meet** — using the decentralizing tools of the Web3 world to decentralize the *permanent rewards* away from the few and toward the many (Appendix I).
- **Funding, honestly.** One possible source is advertising dollars that follow users onto the platform, with the revenue shared back to them. Other models may emerge — including the network's own AI one day outperforming the stale, scraped-data AI of the old internet, and possibly a network coin — but those depend on users migrating in real numbers first (Appendix C, Appendix F, Appendix I).

6. The open questions are the work of the constitution

These are real, and we name them rather than bury them. Each is on the agenda for the public, framer-moderated constitutional process; the full treatment is in Appendix F.

- Why will this succeed where past declarations of internet freedom failed?
- Who owns data that belongs to more than one person?

- What pulls the first users in, before there is any AI advantage to offer? (We begin, like the Patriots, with little more than a cause and the need to raise the means to build.)
- Who decides what speech is allowed?
- How do we keep power from pooling — including with the engineers who build the network and the framers who guide it?
- How do we pay for excellent talent while equalizing rewards? (Wages, like all the network’s finances, would be transparent.)
- What is the new internet’s relationship to the old — a clean break, or a phased one — and who may read, write, and share its data?
- Advertising is itself the engine of the surveillance internet we reject; how do we fund ourselves without becoming it?
- The legal landscape — securities, antitrust, and more.
- The name.

7. The road ahead

We are at the beginning — the call, not the founding. The near work is to make the case well (the essays), to open the work to everyone willing to help (the website and the open repository), and to gather believers and the communities they would form. There is no single day on which “the internet declares its independence.” Instead:

- The **call goes live when it is ready** — when the essays, the provisional Declaration, and the means to join are good enough to put in front of people.
- The documents — the Declaration and the constitution, the Covenant and the Code — are **drafted together, in the open**, over however long that honestly takes. (In 1776 the persuasion, the declaration, and a *failed* first constitution spanned years; we should expect no less.)
- A single **earliest date** marks when the software first works — the soonest any community could actually join and be served by the network.
- After that, **each community ratifies on the date it chooses**, adopting the Declaration and the constitution together. A community’s signing day is its own — meaningful to the people in it, not imposed on everyone. (For the founder’s own community, that date is April 6.)

This is the rolling ratification the colonies themselves used: a common text, adopted by each body on its own timeline. The endpoint is real and the phases are clear, even though no single day is stamped across the whole movement — which is the honest shape for something meant to be joined freely rather than proclaimed over anyone.

Part II — Appendices (the full detail)

Everything below is the depth behind the short read above: the complete vision and principles, the architecture, the historical model we are patterning ourselves on, every hard question in full, the open decisions, and the technical and reading notes. Candid by design — these are working materials, not marketing.

Appendix A — The vision, in full

Today’s internet is organized so that the data people generate is treated as raw material to be extracted, refined, and sold, and the enormous value created on top of it, especially the value now flowing into artificial intelligence, accrues to a small number of companies that own the infrastructure and the models. And the ambition that follows is not limited to data or AI: it extends to the whole app economy — social networks, commerce, and the rest of the apps that run the internet — which the network intends, over time, to rebuild to suit its own purposes, drawing the rewards of that activity back to itself.

The Commonwealth starts from a different premise: **every piece of data is a “digital shadow” of a real human being.** A

photo, a message, a purchase, a search — none of it appears from nowhere. The test is counterfactual: **if you did not exist, that data would not exist**, or would not be attached to you. (A photo with two people in it is attached to *at least* one of them, and might not exist at all without you.) Data, on this view, is a kind of presence: the bits and bytes shaped by your existence in the world. It should be treated as belonging to and sacred to the person who casts it, the way a shadow belongs to the body.

This is not entirely new. People have always left traces — a written record, a physical object altered to refer back to them. Call that a *footprint*: intellectual symbolism embedded in matter. What is decisively new about a *digital* shadow is that it is **computable**. We can build AI that reads our shadows and tells us what they imply — about ourselves, and about how we relate to everyone else. That computability is what makes shadows newly *valuable* and newly *dangerous*: the same property that lets a person derive insight from their own data lets a corporation derive power over them. The Commonwealth exists to make that value flow back to the people who cast the shadows.²

From that premise follows a claim about AI: because modern AI is built by training on the digital shadows of humanity, **the curation of data is decisive**. Whoever decides what data is gathered, how it is stewarded, and what gets fed into the models is shaping the intelligence the whole world will depend on. Right now those decisions are made privately, by a few, for their own enrichment.

The alternative is a network that the people build and own together:

- The people who cast the shadows **share in the rewards** of what's built on them — including AI.
- The code that governs the network is written **in the open**, with nothing run in secrecy, so that no one can quietly tilt the system in their own favor.
- Early backers can be repaid, but returns are **capped and agreed in advance**, so that contributing early earns gratitude and a fair return — never permanent wealth, status, or control. No participant becomes *abnormally* powerful, rich, admired, or authoritative. All remain equal participants.
- Authority is deliberately **distributed and checked** — across individual voices, across Communities that agree to share data and rewards, and across the Commonwealth. *How* that authority is divided and held in check — what bodies hold which powers, how they are chosen, how they answer to the membership — is among the most important questions the constitution has to settle, and getting it right matters more than almost anything else here. Many shapes are worth weighing (a seasoned body to interpret the rules; a body chosen by lot from the membership; rotation and fixed terms against entrenchment); what is non-negotiable is the principle, not any one design: no part may hold every power, and each must be able to check the others.
- This is **not a nation with borders**. It is a *network state*³, possibly a federation of many Communities, bound by shared principles and code rather than by geography.

We will not try to build all of this at once, and we will not pretend the words are the work. The sequence, like every founding before us, runs from persuasion to declaration to governance to the running thing — and we are at the very start of it, issuing the **call** that precedes the declaration. This brief is about getting that call right and setting up the open drafting that follows.

What to call all of it is a question we examine deliberately in F.9, rather than settle by default.

Appendix B — Guiding principles (under debate)

Every founding needs a statement of what it believes, and in our arc that statement has a specific home: **the preamble of the Declaration**. The enduring power of the American Declaration lives almost entirely in one preamble sentence — “*We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights.*” Notice what that sentence does: it asserts **equality** as a self-evident truth, it grounds that equality in **something greater than ourselves** (a Creator), and it does so in language broad enough that a Christian, a deist, and a skeptic could all stand under it. That is exactly the move this section is reaching for, and the principles below are written to become the preamble of our Declaration (see Appendix G).

These are candidate principles offered as examples, not settled doctrine. Membership requirements and the code of conduct remain explicitly under debate (see the open question in Appendix H). What follows is the animating conviction

and a first articulation of it — the raw material for the argument we still have to have, not the conclusion of it.

The animating conviction. The founder’s own starting point is the two Great Commandments named by Jesus: to love God, and to love your neighbor as yourself. But the explicit aim is to gather *everyone who loves something bigger than themselves* — not the members of any one tribe. The intuition is that orientation toward a higher power produces a **correlated equality**: if there is something above all of us, then no participant can rightly be exalted above any other. And love is offered as the connective glue — on the reading that “God is love” (1 John 4:8), even someone who does not believe in God but believes in love may find themselves aligned. We record this conviction plainly because it is the honest source of the principles; the question of how much of this *specific* language belongs in a *universal* public document is one of the live debates below.

Candidate principles, in the preamble register. Written as “self-evident truths,” to be affirmed, argued with, and revised:

1. **That every person is equal in standing, and none may be exalted above another** — no founder, no engineer, no early backer, no charismatic voice. The network’s whole architecture (capped returns, distributed and checked authority) exists to make this true in practice, not just in word.
2. **That this equality is grounded in a shared orientation toward something greater than the self** — named by some as God, by others as a higher power, and by others still as love itself. We seek the company of those who love something bigger than themselves.
3. **That we owe one another the love we owe ourselves** — the second commandment, stated for everyone: we build the network as if each person’s digital shadow were our own, because to us it is no less sacred.

The third principle is the one that maps most directly and least controversially onto the equality at the heart of the project; it asks for no metaphysics, only reciprocity. The first two carry more of the founder’s specific conviction, and therefore more of the tension we have to resolve.

The tensions we are choosing not to paper over. Three of them, logged here and carried into Appendix H:

- **Specific vs. universal.** The harder we lean on the explicitly Christian articulation, the more we signal “a Christian project,” which gathers *a* tribe — the very thing we said we don’t want. The more we abstract toward “a higher power” and “love,” the more inclusive we become, but the more some will feel the conviction has been watered down. This is the central design problem of *every* rooted-but-universal founding. The UDHR’s drafters faced it head-on and chose to ground human dignity in terms all could affirm *without* requiring agreement on its source — Maritain’s famous line was that they agreed on the rights “on condition no one asks us why.”
- **Gate vs. invitation.** Is “love of a higher power” a **requirement to belong**, or the deeper *why* we hold out as an **invitation** while grounding actual membership in the equality/love-of-neighbor that everyone can affirm? This is the open question in Appendix H, and it is deliberately unresolved here.
- **The “God is love” bridge.** Reading 1 John 4:8 as “anyone who loves is therefore aligned” is a real and beautiful interpretive tradition, and it is a *move*, not a neutral fact. Some Christians hold that loving neighbor and loving God are not interchangeable; some atheists may experience being told their love is “really” love of God as annexation rather than welcome. The likely resolution is to *invite* people in on terms each can affirm in their own language, rather than telling them what their love secretly means.

Appendix C — The architecture: three tiers and the division of powers

The network is built in three tiers, and the division of powers between them is the heart of the design. The pattern is **federalism**: as with a citizen, a state, and a federal government, each tier holds powers the others do not, and the contested operational questions are pushed *down* to where they can be worked out — while a shared set of principles binds the whole.

The three tiers have names. At the base are **Individuals** — people, each with their own name. Individuals gather into **Communities** — the middle tier, each Community choosing its own name, its own rules, and its own character within shared limits. All the Communities together make up a single federation: **the Commonwealth**. The agreement that constitutes it — accepted by every Individual and Community on joining, including the terms on which a Community may be severed from it — is **the Covenant**; and the open software that runs and enforces it is **the Code**. Together, the Covenant and the Code are the network’s **constitution**.

The individual. Every person has a **data store that is sacred to them**, and complete control over how it is shared and with whom. Contributing one's data to train the network's AI is **opt-in** — a choice, never a default. And exit is always available: a person may walk away from the network entirely. The network releases them, and, in turn, revokes their membership privileges. This is the reciprocity of membership: you are free to leave, and the network is free to stop extending you the benefits of belonging.

The Community (the middle layer). This is where the system does its hardest work: it exists to **hammer out the hard operational questions** — **consent, data-sharing, moderation, advertising, revenue** — **while holding true to the principles and ideals of the broader collaboration**. Each Community decides for itself:

- **how to filter incoming messages** — its own approach to moderation and the speech it permits (a direct, federated answer to the hardest governance problem; see F.4);
- **how advertising is presented** to its members — advertising being the revenue engine of the whole enterprise;
- **how much of the revenue to pass on** to its participants;
- its own **membership requirements**, within the floor the Commonwealth sets, and it, too, can revoke a member's privileges.

The bet is the one American federalism made: contested questions are better settled close to the people they affect, by many Communities experimenting, than dictated uniformly from the center.⁴

The Commonwealth (the global layer). The Commonwealth sets the **constitutional floor and the protocol**. It defines **which summary statistics each Community must share, and how** — the intra-network permissions and the baseline membership requirements that keep the federation coherent — and it **builds and runs the software** the whole thing runs on, taking a **percentage fee** to do so. By design it is the smallest and most constrained tier; for exactly that reason it is also the network's central point of power, which is why how it is governed — what bodies hold authority, and how they are checked — matters more than almost anything, and is among the hardest work ahead (see F.5).

Funding — one possible source. One way the enterprise might sustain itself is **advertising**: Communities present ads to their members and choose how much of that revenue to return to them; the Commonwealth takes a percentage to fund and operate the software. This is not the only conceivable model, and none of it is settled (see F.8 and Appendix I). For the longer term, the hoped-for **competitive edge** over the extractive, non-collaborative incumbents is **AI built on consented data** — data members chose to contribute, from shadows they control. The wager is that consented, high-quality, person-linked data yields better AI than scraped data (a wager to pressure-test; see F.6), but that edge only appears once users have migrated in real numbers and the network protects its content from the old internet (see F.10, F.11), so it cannot be what attracts the first users.

How this resolves the capture-vs-consent tension. There is a real danger here: the aim of capturing full, holistic, timestamped shadows is, read flatly, the logic of surveillance. This architecture answers it — **the capture happens at the individual's own sacred store, under their own control; sharing is opt-in; exit is always open**. Holistic capture in service of *self-knowledge and self-chosen benefit* is liberation; holistic capture *by the network, of everyone* would be the panopticon. The three tiers are the machinery that keeps it the former.

The new tensions this architecture introduces — logged, not smoothed over:

- **Advertising is the revenue model, and advertising is the engine of the very internet we are declaring independence from.** This is the sharpest tension in the whole design. Targeted advertising is *built on* the profiling we condemn; if the network's ads are targeted with member data, the surveillance dynamic returns through the back door, even with consent and revenue-sharing. The likely resolution is **contextual or privacy-preserving advertising**, and/or ads whose targeting each member explicitly controls, but that earns less than surveillance advertising, and the gap is a real constraint. (See F.8; this belongs in the open decisions, Appendix H.)
- **Federalism's oldest problem: the race to the bottom.** If Communities compete for members and ad revenue, some will be tempted to moderate less, permit more, or share more data to win. The global floor is what prevents this, but a floor is only as strong as its enforcement, and *who enforces the principles on a wayward Community, and how* is one of the central constitutional questions this design must answer.
- **"Summary statistics" can still leak.** Even aggregate statistics can expose individuals (this is why differential privacy is a field). The mandated inter-Community sharing must be designed so the floor doesn't quietly become a privacy hole.

- **Federated moderation fragments the commons.** Letting each Community filter its own way answers *who decides*, but it can breed echo chambers and polarized enclaves, and it does not by itself handle the worst content or cross-Community harms — which still need a global floor, not Community discretion. (See F.4.)

Appendix D — The core theses

Six load-bearing claims. Each is a hypothesis we are committing to test, not a settled truth.

1. **Digital shadows are computable.** All data traces back to people — by the counterfactual test, it would not exist (or not attach to you) if you did not. It should be treated as sacred to the individuals (and, see F.2, the *groups*) who cast it.⁵ What makes shadows newly powerful is that they are *computable*: AI can read them — which is at once their value and their danger.
2. **Curated data is AI's true lever.** Holding compute and algorithms roughly equal, the data, and especially the *curation* of it, is what most shapes the resulting intelligence. (Contestable; see F.6.)
3. **Collective ownership and shared reward.** A network whose value is created by its members should be owned by its members, and its rewards should flow back to them rather than out to external owners⁶ — concretely, through the revenue-sharing of Appendix C.
4. **Open, constitutionally-governed code.** The software that runs the network is part of its constitution. “Code is law” (Lessig’s phrase)⁷: how the code behaves is how the society behaves, so the code must be public, auditable, and changed only through legitimate process.
5. **Anti-oligarchy by design.** The system is engineered so that power and wealth cannot concentrate: capped returns, distributed and checked authority, transparency, and amendment rules that are hard but not impossible to use.
6. **Network state, not nation state.** Membership is by affirmation and participation, not birth or border. The model is federal and voluntary — three tiers (Individuals, Communities, the Commonwealth), with powers divided as in Appendix C.

Appendix E — The historical model: how movements like ours unfold

Our arc is modeled on the American founding and on other democratic movements throughout history. Here is that arc, and the lineage we’re joining.

E.1 The American arc — and its single most important lesson

The sequence was not “declaration, then everything was fine.” It was:

1. **The case (1776, *Common Sense*).** Thomas Paine’s pamphlet turned a fringe idea into a popular cause. It is the closest analog to **our essays**: the persuasive argument that makes ordinary people feel the current order is intolerable and an alternative is both right and possible.
2. **The Declaration (July 1776).** Three parts: a *preamble* of principles (“self-evident” truths, natural rights, government deriving its just powers from consent); a long, *specific* indictment of concrete grievances; and the *act itself* — the formal declaration of separation. Note the structure: principle, grievance, act. We will mirror it.
3. **The Articles of Confederation (1777–1781), and they FAILED.** The first attempt at actual governance created a union too weak to function: no real power to tax, to regulate commerce, to act in common. Within a few years it was clear the framework was broken.
4. **The Constitution and the Federalist Papers (1787–1788).** A closed-door convention rebuilt the framework from scratch, full of hard compromises. The Federalist Papers were the public argument for *ratifying* it — the second great persuasion campaign, after Paine’s.

5. **Ratification and the Bill of Rights (1788–1791).** Adoption by the states, then the first ten amendments to protect what the Constitution had left exposed.

The lesson we must internalize: the first governing framework failed and had to be torn up and rebuilt. Our first attempt at a constitution and at running code will almost certainly be our “Articles of Confederation.” We should design for that — short amendment cycles early, an explicit expectation of a “second founding,” and no pretense that v1 is permanent.

A date, reconsidered. July 2 is not the day the Declaration was signed — most delegates signed the engrossed parchment on **August 2, 1776**, and the *text* was adopted on **July 4**. July 2, 1776 is the day Congress *voted for independence itself* (the Lee Resolution); John Adams wrote to Abigail that the 2nd, not the 4th, would be the day Americans celebrated forever. But because we are *not* fixing one signing day for everyone — communities ratify on their own dates — these anniversaries become a menu of meaning rather than a single deadline: a community might choose July 2 (the day the decision was made), July 4 (the day the text was adopted), August 2 (the day it was actually signed), or a date entirely its own. The lesson that matters more is the one just above: the first framework will likely fail and need rebuilding.

E.2 The broader democratic lineage to draw from

- **Magna Carta (1215)** — the foundational move of binding a sovereign’s power by written agreement. Our equivalent sovereign is the network’s code and its stewards; the lesson is that *no power is above the rule we all agree to*.
- **French Declaration of the Rights of Man and of the Citizen (1789)** — more universalist in voice than the American Declaration; rights asserted for *all* people, not one people against a king. Useful tonally for a global movement.
- **The Universal Declaration of Human Rights (1948)** — a *global, non-state* declaration of principles, adopted by an assembly of many peoples rather than promulgated by one nation. **This may be a better structural template for us than 1776**, precisely because we are borderless. Worth studying its drafting process (Eleanor Roosevelt’s committee, the cross-cultural negotiation) as a model for legitimate, inclusive authorship.
- **Athenian democracy and modern sortition** — choosing officials by lot is ancient, and it is alive today: Ireland’s Citizens’ Assembly (which shaped referendums on same-sex marriage and abortion), and the German-speaking community of Ostbelgien’s standing, sortition-based citizens’ council. These are real, working precedents for a sortition-based body, should the governance design call for one, including the hard-won lessons about competence, support staff, and legitimacy.

E.3 The digital lineage this project is joining — and must reckon with

This is the part most easy to skip and most dangerous to skip.

- **John Perry Barlow, *A Declaration of the Independence of Cyberspace* (1996).** The direct ancestor of what we’re doing — a literal declaration of internet independence, addressed to the governments of the world, declaring cyberspace a sovereign realm beyond their reach. **It failed instructively.** It assumed the internet would naturally resist control; instead, the absence of governance led not to freedom but to capture by a handful of corporations. Barlow declared independence *from* and never built the institutions of independence *toward*. We must engage his text directly, as inspiration and as a cautionary tale, and our answer to why we will succeed where Barlow failed must be explicit and convincing.
- **The free and open-source software movement.** The *real* successful declarations of digital independence: Stallman’s GNU Manifesto (1985), the Free Software and Open Source movements, the Linux kernel, Mozilla, Wikipedia/Wikimedia, the Signal Foundation, Creative Commons. **These are our most important practical models** — not because of their rhetoric, but because they actually built durable, collectively-stewarded, world-scale things and figured out *governance and funding*. Study especially: Wikipedia (donation-funded, community-governed, enormously valuable), Mozilla (a nonprofit foundation owning a for-profit subsidiary), the Linux Foundation (neutral steward of shared infrastructure), and Signal (a foundation deliberately structured to resist acquisition and enshittification). One of these structures is probably closer to what the Commonwealth should be than any startup is.
- **Platform cooperativism** (Trebor Scholz and others) — the movement to build *user- and worker-owned* platforms (e.g., driver-owned ride-hailing). This is almost exactly the project’s “the network owns the apps” idea, and its track record is the honest evidence on how hard it is to out-compete venture-funded incumbents.
- **DAOs and on-chain governance.** Because the project intends to leverage crypto and blockchain, it is worth studying what that world has and hasn’t solved. The DAO (2016) and its hack; ConstitutionDAO (2021), which raised ~\$47M to bid on a copy of the U.S. Constitution and then dissolved — almost too on-the-nose for us; the recurring failure mode of

governance-token *plutocracy*, where one-token-one-vote simply reproduces wealth as power. The useful tools here (quadratic voting, conviction voting, reputation systems) are real; the cautionary tales are realer.

- **The Network State (Balaji Srinivasan, 2022).** The current intellectual home of the “network state” language used here. Worth reading directly — both for its framework (start with a community and a cause, then accrue members, then negotiate recognition) and for the critiques of it, so we adopt it with eyes open.
- **Data dignity / data-as-labor / data trusts / relational data governance.** The intellectual home of “data as sacred to the individual”: Jaron Lanier and Glen Weyl’s “data dignity” and “data as labor” (*Radical Markets*), the MyData movement, the UK’s work on data trusts, and — crucially, as a *counterweight* — Salomé Viljoen’s argument that individual data-property rights are the *wrong* frame because data is fundamentally relational. We need to be fluent in both the case for individual data rights and the strongest case against them (see F.2).

Appendix F — The hard questions, in full

These are the questions a thoughtful skeptic, a hostile journalist, and an honest co-founder will all ask. We need real answers, not slogans, before launch where possible, and a credible “here’s how we’ll find out” where not. Every one of them is part of the agenda for the constitutional process — to be worked out in public, moderated by invited framers; the answers below are starting points, not conclusions.

F.1 Barlow already declared this in 1996. Why will we succeed where techno-utopianism failed?

This is the first question every informed reader will have, and we answer it *in the essays themselves* (above all *We Never Agreed* and *The Ledger and the Spoils*). Our differentiator can’t just be sincerity. The honest answer probably has to be: *because we are not declaring the internet free of power — we are proposing to build new institutions of power that are owned and governed by its people, and we are treating the governance and the code as the actual work, not an afterthought*. If we can’t say clearly how we differ from Barlow, we are Barlow.

F.2 Is data really “individual”? (The relational-data problem)

The “each shadow belongs to one person” frame is intuitive and morally appealing, and it breaks on most of the data that matters. A conversation belongs to everyone in it. A photo includes bystanders. A social graph is co-produced by definition. Much valuable data is aggregate, machine-generated, or derived. And the *harms* of data (discrimination, manipulation, surveillance) operate at the population level, not the individual one — which is why serious scholars argue individual property rights in data are exactly the wrong tool. **We need a governance model for jointly-produced and collective data**, not just individual shadows. This may be the deepest conceptual fix the project needs. One direction: treat the individual shadow as the *moral foundation* but vest *governance* in collective, democratic structures — which, conveniently, is also what the rest of the project is about. Note that the sharpened counterfactual definition (“it wouldn’t exist without me,” Appendix A) *deepens* this problem rather than solving it: a shared photo fails *both* subjects’ counterfactual test at once, so the test often returns *several* owners for one datum — exactly the joint-ownership tangle. The three-tier architecture (Appendix C) is where that tangle has to be adjudicated in practice.

F.3 The cold-start / migration problem

Declarations don’t move users; value and switching costs do. Every prior attempt at a decentralized, user-owned internet — Diaspora, App.net, Mastodon, most platform co-ops — stalled here. “The network finds its voice and migrates from the apps of yesterday” is the hand-wave where these efforts die. **We need a concrete wedge**: a single use case where the network is *better*, not just more virtuous, for an early adopter on day one — strong enough to overcome the empty-room problem. Candidate wedges worth debating: a data trust that actually pays members when their data trains AI; a single tool incumbents structurally *can’t* offer because their business model forbids it; or starting as a movement and a fund rather than a product (the UDHR was never an app). This — the path from where we are now to the internet these essays describe — is the first order of business once the call is underway, to be worked out with the earliest contributors rather than pretended solved before launch.

F.4 Speech and moderation: the governance problem not yet confronted

Every platform that has ever scaled has broken on the question of *who decides what's allowed*. It is the single hardest unsolved problem in social technology, and a “constitution for the internet” that doesn’t confront it is not yet a constitution. Free-speech absolutism produces unusable, abuse-ridden spaces; heavy moderation produces the exact concentration of unaccountable power we’re rebelling against. **The Constitution’s hardest article will be the one about speech.** We should start thinking about it now, and we should be humble: this is where good intentions go to die. The architecture (Appendix C) supplies a *partial* answer — each Community filters its own incoming messages, federating the “who decides” question rather than centralizing it — but federated moderation has its own failure modes (echo chambers, fragmented enclaves) and still leaves the worst content and cross-Community harms to a global floor, not Community discretion. So Appendix C answers part of this and sharpens the rest.

F.5 Power is not only financial

Capping financial returns is genuinely clever and rare — keep it. But it does not prevent capture, because power has many currencies. Founders, core engineers, the people who hold the cryptographic keys, the people who control the code repository, and charismatic early voices all accumulate *de facto* authority no cap can touch. The *form* of the network’s governance is exactly what must guard against this, and it is deliberately unsettled: designing it so that no part can concentrate power, formally or informally, is among the most important work the constitution has to do. DAOs that promised flat power ended up run by whales and core devs. We need explicit mechanisms against *informal* concentration: rotation, term limits, key-management that no individual controls, a culture (and rules) against founder-worship, and sober scrutiny of how much authority any body, or any individual, may hold, and for how long.

F.6 Does curated data actually give us leverage? (Compute, capital, and collective action)

“Curated data matters more than the math” is a hypothesis, not a fact. Frontier AI also depends on vast compute and capital, and on data that, once scraped, can’t be un-scraped. For collective data ownership to confer real bargaining power, two things must hold: the data must be genuinely scarce and non-substitutable (synthetic data and existing corpora cut against this), and the coalition must be **near-universal**, because any individual who defects and sells benefits while the holdouts get nothing. This is a classic collective-action problem and it is the Achilles’ heel of every “data union” idea. We need a clear-eyed theory of *where our leverage actually comes from* — it may be less “we’ll withhold the world’s data” and more “we’ll build trusted, high-quality, consented data that’s worth paying for and that the scraped pile can’t match.” That second framing is exactly the competitive wager the architecture makes (Appendix C); it is more defensible than the first, but it still has to be *proven*, not asserted.

F.7 The legal reality (this is the one founders get blindsided by)

Not legal advice, but the issues that must go to real counsel before the website accepts a cent:

- **Securities law.** “Invest and receive a capped return” is very likely an *investment contract*, a security, under the Howey test. Selling securities to the public without registration or an exemption is the kind of mistake that ends projects and invites personal liability. Tokens don’t avoid this; the SEC has repeatedly treated them as securities.
- **Antitrust — the OPEC problem.** The OPEC analogy is invoked approvingly — but legally it cuts the other way: OPEC can collude on supply only because its members are sovereign states immune from antitrust law. A private network coordinating to withhold or price a resource (data) is, in antitrust terms, a *cartel*. The framing needs care.
- **Entity and tax.** “A company owned evenly by the whole network, distributing profits to all members” is a genuine tax-and-corporate-law puzzle (think thousands of owners, tax reporting per member, governance liability). The foundation/cooperative structures in E.3 exist partly to solve this; pick deliberately.
- **Data protection.** Good news here: the “data is sacred to the individual” frame is *aligned* with GDPR and similar regimes (data-subject rights, consent, portability). This could be a strength and a source of legitimacy.

F.8 The funding model — and the advertising paradox

Advertising is *one possible* way to sustain the network (Appendix C): Communities present ads and return a share of the revenue to members. It is not the only model, and none of it is settled — others may emerge, including the network’s own AI eventually outperforming the old internet’s stale, scraped-data AI, and possibly a network coin (Appendix I) — but those depend on users having migrated in real numbers first (F.10). Advertising also raises a sharper problem of its own. **Targeted advertising is the economic engine of the surveillance internet we are declaring independence from.** If the ads are

targeted with member data, the extraction dynamic returns even with consent and revenue-sharing; if they are contextual or privacy-preserving, they earn less. That gap is a real constraint, not a detail. And the hardest piece: advertising (and, later, AI) might fund *operations*, but **who funds the initial build**, before any of that exists? The honest answer is that we begin, like the Patriots, by raising the means to build (F.10). The working recommendation is to fund the build as a nonprofit foundation (the Wikipedia / Mozilla / Signal posture), keep launch-day to *affirmations and pledges* rather than money, and design any ad model as **contextual and member-controlled from the start**.

F.9 The name

Why the name was chosen. *Zion* began as the name of a hill in Jerusalem (2 Samuel 5:7) and, across a remarkably broad range of traditions and cultures, came to name something larger — an aspiration to a community of peace, refuge, and justice; a people gathered by what they value rather than by blood or border (a community of “the pure in heart,” in the Biblical phrase — Matthew 5:8):

- **Judaism** — Zion is Jerusalem and the spiritual home of the Jewish people, longed for throughout scripture and liturgy (Psalm 137).
- **Christianity** — Zion is both the earthly city and the heavenly one to come (Hebrews 12:22; Revelation 14:1).
- **Islam** — Jerusalem (al-Quds), which *Zion* (Arabic *Sahyun*) names, is among the holiest places in Islam: the destination of the Prophet Muhammad’s Night Journey and the site of the al-Aqsa Mosque, whose surroundings the Qur’an calls blessed (Qur’an 17:1).
- **Rastafari** — Zion is the promised land, Africa and especially Ethiopia, set against “Babylon,” the oppressive order (the Kebra Nagast; Leonard E. Barrett, *The Rastafarians*).
- **Cyberpunk and internet culture** — the same name recurs as the refuge of the free in the genre’s founding works: in William Gibson’s *Neuromancer* (1984), the Zion cluster is a colony founded as a refuge from “Babylon”; in *The Matrix* (1999), Zion is the last city of humans who have unplugged from a machine-run illusion. In both, Zion is where those who escape a controlling technological system make their home.

The common thread is a community defined by its values and a refuge from oppression — which is exactly what this network aims to be. Yet the resonance is not universal: *Zion* is a Biblically rooted word with little or contested meaning outside this family, and, most consequentially, the modern term *Zion* / *Zionism* is bound up with the politics of Israel and Palestine and contested across much of the Muslim world, even as Jerusalem itself remains sacred in Islam. A name that says “a community of the pure in heart” to some will summon a geopolitical fight for others. Whether *Zion* is the right *public* name, or only a fitting internal one, is itself a question for the framers — which is why this document wears a more universal title outwardly.

F.10 The bootstrapping problem: no AI before users

The competitive edge we hope for — AI built on consented, high-quality data — does not exist until people have already joined and contributed that data. The advantage is a *consequence* of success, not a cause of it, so it cannot be what pulls the first users in. We have to be honest that, at the start, we hold little more than a cause and the means to argue for it — this document is the microphone. Like the Patriots, we must raise the funds to “go to war”: to build the app and win the first users on the strength of the cause and whatever early incentives we can offer, long before any AI flywheel begins to turn. What that first compelling incentive is, and how the build is paid for before any revenue exists, is among the most important questions for the framers (and is the cold-start problem of F.3 seen from the funding side).

F.11 The relationship to the old internet

Part of the network’s hoped-for edge depends on protecting its content from the old internet — keeping the new network’s data from simply being scraped back into the incumbents’ models. But that protection sits against the open, transparent ethos and the open-source principle, and it is *technically hard*: you cannot easily stop the old internet from copying what users post. The intent is likely a full cut-away from the old internet, perhaps in phases. In truth, all of the permissions — who may read, write, and share the data of the new internet, and what access (if any) the old internet retains — remain open questions for the framers to resolve.

F.12 Excellent talent vs. equalized rewards

Like a government, the network’s finances — including the wages paid to the engineers who build and run it — would be transparent. That creates a genuine tension: we want the best builders in the world on this, which usually commands premium pay, and we are at the same time trying to flatten rewards back out across the network. How to attract and keep excellent talent without recreating the very concentration of reward we set out to dissolve is a hard problem, and one the framers will have to resolve with care.

Appendix G — The deliverables, mapped to the arc

You named three things to build. Here is how each maps onto the founding sequence — plus the constitution that follows, which itself comes in two parts: the Covenant and the Code.

Deliverable	Historical analog	What it is	Where it sits in the arc
The Essays	<i>Common Sense</i> (Paine)	The persuasive case, as a series of five short essays (Section 4): why the current internet is intolerable, why an alternative is right and possible, and how we differ from every failed attempt (esp. Barlow). The thing that moves hearts.	The call (now)
The Declaration	Declaration of Independence (1776) / UDHR (1948)	Principle → grievance → act. A preamble carrying the Appendix B principles (the equality of all participants, grounded in something greater than the self; digital shadows; consent; shared reward), a <i>specific</i> indictment of the present order, and the declaration itself. For now a provisional draft — one proposal the call invites people to argue with and rewrite; ratified, with the constitution, only once finished.	Drafted during the call; ratified later
The Website	The committees of correspondence + the call to gather	The public home of the whole vision in digestible form, carrying the provisional Declaration and the full essay series. Where people <i>read, join the call</i> , lend their help, and <i>name the community</i> they would form — turning readers into a gathering body and letting communities begin to take shape.	The call (now)
The Covenant	Articles of Confederation → U.S. Constitution	The written half of the constitution — the agreement Individuals and Communities ratify: the three-tier division of powers (Appendix C), the inter-Community data-sharing protocol, exit and membership rules, the advertising/revenue rules, plus how authority is divided and checked, amendment, and the hardest article — speech (F.4). Drafted alongside the Declaration; expect a failed first draft.	Drafted during the call; ratified with the Declaration
The Code	The constitution made operational	The running half of the constitution — the open, auditable software that <i>runs</i> the network and enforces the Covenant. “Code is law.” Its first working version sets the earliest date any community can join.	After the Covenant stabilizes
The open repository	Free/open-source projects (GNU, Linux, Wikipedia)	The project hosted in public from day one — the brief, the essays, and everything that follows — open for anyone to read, raise issues, and contribute. Building the work the way we mean to govern it: in the open.	The call (now) onward

Five design notes that follow from the arc:

- The grievances in the Declaration must be **specific and fair**, the way 1776’s were (“He has...” — concrete acts). Vague villainy against “oligarchs” weakens a declaration and invites dismissal. Name structural practices, not enemies.
- The website is a **call to join**, not a signing — because there is nothing finished to sign yet. Joining the call should feel meaningful and proud, but the gravity of putting one’s name to a finished, binding text is reserved for **ratification**, later, when the Declaration and the constitution are written and the network actually works. Don’t spend the weight of the signing on the sign-up.
- The Declaration’s **preamble** carries the Appendix B principles in the “self-evident truths” register of 1776 — equality asserted, and grounded in something greater than the self — in language broad enough to gather widely. How explicitly that language names its source is the open question in Appendix H.
- The **essays** carry the conceptual groundwork — the digital-shadow idea in its sharpened, *computable* form (Appendix A),

and the reframing of AI as value returned to the people whose data it's built on. State that reframing in its defensible, *normative* form ("AI built on consented, person-controlled shadows *can* return value to those it's derived from, and that's the kind we build"), not as the bare claim that "AI is value to humanity," which a critic will dismantle in a sentence.

- **Who holds the pen during drafting is unsettled** (Appendix H). The call gathers the people and the communities who will write and ratify; how editorial authority is actually exercised in the open — curated proposals, an elected drafting body, or weight given to the largest committed communities — is among the first things to settle, consciously, because "we wrote this together" is a claim people will test.

Appendix H — Open decisions (for the founder)

These are the forks only the founder can settle, and several of them shape the Declaration's actual text, so they should come first. The recommendation in each case is in parentheses, but the call is the founder's.

1. **Membership and code of conduct (the Appendix B principles):** is love of a higher power a **gate** — a requirement to belong, from which equality follows — or an **invitation**, the deeper *why* we hold out while grounding actual membership in the equality and love-of-neighbor that everyone can affirm? And how much of the explicitly Christian articulation belongs in a document meant to be universal? (*Deliberately left open. The lean here is invitation, with the principles themselves written in universal language and the founder's conviction recorded as its honest source. Note the architecture in Appendix C suggests this may itself be worked out at the Community level — different Communities drawing the line differently within a global floor.*)
2. **The advertising model (new — from Appendix C):** is advertising **contextual** / **privacy-preserving** / **member-controlled**, or **targeted with member data**? This is the project's defining economic-ethics fork: targeted ads earn more but reimport the surveillance dynamic we reject, even with consent. (*Strong lean to contextual/member-controlled, designed in from the start; treat the revenue gap as a cost of integrity, not a problem to engineer around later. See F.8.*)
3. **Framing voice:** an American-style declaration ("one people" separating from a power) or a UDHR-style universal declaration ("all people," global, inclusive)? (*Lean UDHR-universal, given the borderless premise, but a hybrid that uses 1776's three-part structure with the UDHR's universal voice may be best.*)
4. **Posture and build capital:** operating revenue is now settled (advertising + global fee + Community revenue-sharing, Appendix C), but **who funds the initial build** before ad revenue exists? Nonprofit foundation, donation/grant, or capped-return capital? (*Lean nonprofit foundation, Wikipedia/Mozilla/Signal model; defer any money-taking investment instrument to lawyered later stages.*)
5. **The name:** adopt the candidate name examined in F.9 as the public name, keep it as an internal aspiration only, or choose a different public name? (*Decide on purpose; see F.9.*)
6. **Scope of the call's launch:** the call, the essays, and the means to join — or also an early working artifact? (*Lean call-and-essays; the build is the multi-year project that follows, and the earliest a community can actually join is gated by working code.*)
7. **The grievances:** who and what, precisely, is the indictment against? (*Name structural practices — extraction without consent, value capture, opacity — not individuals or companies by name. Specific and fair beats sweeping and angry.*)
8. **What the website does on day one:** the call only — join (affirm the belief), optionally leave an email for updates, and name the community you would form — presented with a dashboard of communities and their momentum, and no money collected. (*Settled in this direction. The roll is not public for now; counts reflect confirmed sign-ups, not a census.*)

Appendix I — Web3, and where AI meets crypto

The technological underpinnings of the new internet will draw heavily on the decentralized Web3 world: blockchains for trust without a central authority, cryptographic key-ownership so individuals control their own data and identity, smart contracts for transparent and tamper-resistant rules, and token mechanics for aligning incentives. In a real sense this project is where

AI and crypto meet — it uses the decentralizing tools crypto has developed to bring optimal decentralization to both, and, most importantly, to decentralize the *permanent rewards* of the network away from founders, early adopters, and investors and toward the broad body of users who generate the value.

Funding the road ahead. How the network sustains itself — as it grows from an idea, to a movement, to a fully functioning commonwealth — is a question the framers will answer in the open, alongside the funding questions of Appendix F. Several mechanisms are conceivable, from advertising revenue shared back to members to instruments not yet designed; each carries real legal weight (see F.7), and none is settled. What is settled is the principle any mechanism must serve: the rewards of the network flow to its people, and no one is permanently enriched above the rest.

Appendix J — Reading list to ground the work

Founding documents: the U.S. Declaration of Independence; the U.S. Constitution and the Bill of Rights; the Articles of Confederation (read it precisely *because* it failed); selected Federalist Papers (esp. Madison on faction); the French Declaration of the Rights of Man (1789); the Universal Declaration of Human Rights (1948).

Digital precedents: John Perry Barlow, *A Declaration of the Independence of Cyberspace* (1996); the GNU Manifesto (1985); Lawrence Lessig, *Code and Other Laws of Cyberspace* (“code is law”).

Governance and economics: Elinor Ostrom on governing the commons; the histories of Wikipedia/Wikimedia, Mozilla, the Linux Foundation, and Signal; Trebor Scholz on platform cooperativism; the DAO and ConstitutionDAO post-mortems; Balaji Srinivasan, *The Network State*.

Data: Jaron Lanier on data dignity (*Who Owns the Future?*) and Posner & Weyl on data-as-labor (*Radical Markets*); Salomé Viljoen on relational/democratic data governance (the strongest critique of the individual-property frame — read it as a friendly adversary).

Sortition: Ireland’s Citizens’ Assembly; the Ostbelgien citizens’ council; the literature on deliberative mini-publics.

SOURCES & NOTES

1. Data is *nonrival* — usable by many people at once without being used up — so locking it inside a few firms is inefficient as well as inequitable, and the value tends to accrue to whoever holds the data rather than to whoever generated it. Charles I. Jones and Christopher Tonetti, “Nonrivalry and the Economics of Data,” *American Economic Review* 110, no. 9 (2020), <https://www.aeaweb.org/articles?id=10.1257/aer.20191330>; and Yochai Benkler, *The Wealth of Networks* (Yale University Press, 2006), on value created by networked people. ↩
2. The conviction that data should belong to, and reward, the person who generates it has close kin in two bodies of work: *data dignity*, in Jaron Lanier, *Who Owns the Future?* (Simon & Schuster, 2013); and *data as labor*, in Eric A. Posner and E. Glen Weyl, *Radical Markets* (Princeton University Press, 2018), ch. 5, developed with Lanier. The “digital shadow” framing treats data as presence rather than only as labor, but shares their aim of returning its value to its source. ↩
3. The term is Balaji Srinivasan’s, *The Network State: How to Start a New Country* (2022) — a community bound by shared commitment and cryptographic networks rather than by contiguous territory. We adopt the structural idea of a non-territorial, network-bound polity. ↩
4. That communities can govern shared resources sustainably — without either privatization or top-down control — given the right design principles (clear boundaries, monitoring, graduated sanctions, and nested, polycentric authority) is the central finding of Elinor Ostrom, *Governing the Commons* (Cambridge University Press, 1990). The Community tier and its enforceable floor draw directly on this. ↩
5. That much data is irreducibly *relational* — it concerns more than one person at once, so a purely individual-property frame is incomplete — is the core argument of Salomé Viljoen, “A Relational Theory of Data Governance,” 131 *Yale Law Journal* 573 (2021), <https://www.yalelawjournal.org/feature/a-relational-theory-of-data-governance>. It is the strongest critique of the individual-ownership approach, and we take it up directly in F.2. ↩
6. The principle that a platform’s value should be owned by the people who create it is the heart of the *platform cooperativism* movement: Trebor Scholz, “Platform Cooperativism: Challenging the Corporate Sharing Economy” (Rosa Luxemburg Stiftung, 2016); and Trebor Scholz and Nathan Schneider, eds., *Ours to Hack and to Own* (OR Books, 2017). ↩
7. Lawrence Lessig, *Code and Other Laws of Cyberspace* (Basic Books, 1999; rev. ed., *Code: Version 2.0*, 2006), which argued that software architecture regulates conduct as powerfully as law. ↩